Docheio Cloud

Mr. Himaank Goyal
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Subject: Employment Contract

Dear Himaank,

We are pleased to appoint you as **Junior Cloud Engineer** in **Docheio Cloud Pvt. Ltd.** ('Company'). Your date of joining is August 2nd, 2021 and you will be on a probation period upto January 2nd, 2022.

Your Total Annual compensation will be **Rs.3,30,000 (Rupees – Seven Lakh Fifty Thousand only) per annum (CTC)**. The break-up of this amount shall be provided to you in due course upon joining. It includes variable performance linked pay i.e., 10%, as decided by the company.

The annual compensation and variable performance linked pay will be subject to review from time to time as per the Company's policies. The above amounts shall be subjected to Tax Deduction at Source (TDS) as per the provisions of the Income Tax Act, 1961.

The terms and conditions outlined in **Annexure A** to this letter are an integral part of this letter. Kindly note that terms and conditions are subject to change from time to time. Other policies, procedures and other terms and conditions, including but not limited to those relating to work days, office hours, leaves, notice period etc. as declared from time to time shall also be binding on you.

As a confirmation of your acceptance to the terms of this Contract, please sign at the place provided below, along with initials on all pages of this Contract read with Annexure A, in duplicate. This contract is valid for 7 days from the date of its issue. If your confirmation as aforesaid is not received by the undersigned within the said period of 7 days, the offer shall be deemed to have expired.

We look forward to a long and mutually beneficial association with you.

Sincerely,
For **Docheio Cloud Pvt. Ltd.**



Sanket Dangi
Director

I Accept



Himaank Goyal

Annexure A – Terms and Conditions of Employment

1. Background and Reference Verification

The Company reserves the right to check, review and verify your acclaims, academic records, prior employment-related records, client references, and other matters relating to verification of your background for this Employment, before and at any time during the continuance of your employment with the Company. This includes but is not limited to check, review, and verification of criminal history. Also, this includes but is not limited to checks, review, or verification of whichever kind is carried out by an external agency appointed by the Company.

You shall extend your complete cooperation, as may be required, for the satisfactory completion of such checks, review, or verification. In case such checks, review or verification reveal any inconsistency in any statements made, whether oral or in writing, or in the bio-data submitted by you to the Company, or any other declarations submitted by you to the Company, the Company reserves the right to terminate your Employment with immediate effect, without prejudice to any other civil or criminal recourse available to the Company, and without any compensation of whatever nature to your benefit.

2. Exclusive Employment

Your employment with the Company shall be on an exclusive basis. This means that during the course of your employment with the Company, you shall not accept employment of any other employer, including, but not limited to, the Company's client(s), peers or competitors, without a prior written consent of the authorised personnel in the Company. You shall also not engage in any independent trade, business or profession, since it may potentially conflict with the demands of your employment with the Company, without a prior written consent of the authorised personnel in the Company.

During the course of your employment with the Company, you shall not seek to promote the trade, business or profession of any other person whatsoever, whether during or outside the working days and working hours of the Company, without a prior written consent of the authorised personnel in the Company.

3. Health and safety

You shall be responsible to ensure that you do not adversely impact the health and safety of yourself, as well as health and safety of your colleagues, clients, or any other persons who may visit the Company's office(s). Accordingly, you are required to follow all health and safety regulations, precautions and protocols as prescribed by the firm from time to time. By signing

this letter, you confirm your willingness and commitment towards the health and safety of yourself as well as that of your colleagues, clients, or any other persons aforementioned.

By signing this letter, you also confirm that you have adequate life and medical insurance, appropriate to your standard of living and family income. You confirm that upon any adverse medical condition including, but not limited to, illness, accident, injury or death, you shall have no monetary or other recourse to the Company or any members of the Company.

4. Working Days, Working Hours, Leave Policy

Your normal working days, working hours and annual leave entitlement will be as provided in the Company's leave policy and informed to you from time to time. You shall not be entitled to any paid leaves during the period of your probation.

Depending on the situation at hand, you may be required to work from home on certain occasions, as per the needs of the Company. However, the option to work from home is not available to you unless specifically approved in writing.

5. Work Location

Your current location of work will be Udaipur or Hyderabad, India. The precise address of the office premise in Udaipur shall be intimated to you separately. Additionally, you may be asked to visit offices of our clients, Government departments, bankers, vendors, or associates, or other places of work, as may be needed by the Company from time to time. You shall be responsible to arrange for travel to and from the above workplace(s) as per the working days and working hours of the Company, at your own costs and expenses, unless additional costs are specifically approved by an authorised person in writing.

It is understood that you hold an Indian passport, and that you are an Indian citizen, and also that you do not require any specific authorizations to work in the above work location. It shall be your responsibility to intimate any changes in your citizenship or country of residence to the Company within 7 days of such change being applicable. You shall hold the Company harmless of any error or omission on your part to obtain the relevant work permits or other authorizations, as may be required with respect to your employment in the Company.

Depending on the requirements of the Company from time to time, you may be relocated to another office / offices of the Company or its client(s), within or outside the country. You shall be liable, but not entitled, to such relocations. In case of such relocation, you shall be bound by the terms and conditions of such a new place where you are relocated. In case of relocation to clients' offices, you shall be subjected to additional terms and conditions relating to such relocation, and the same shall be intimated to you as and when such a situation arises.

6. Confidentiality

During the course of your employment, you are likely to get access to confidential information about the Company and the Company's client(s). You are expected to maintain high standards of confidentiality with respect to the Company, its client(s), and other parties throughout the course of your employment with the Company.

You shall not save or bring into the Company infrastructure, either physical or digital, any confidential or sensitive data, documents or information relating to your personal matters, or those relating to any other parties (including your previous employer(s), peers or competitors).

During the course of your employment and after termination of the employment, you shall not disclose to any person whatsoever, any confidential or sensitive information about the Company, its business, its client(s), vendors, service providers, or any person or matter associated with the Company in any manner whatsoever. You may be required to sign specific confidentiality / non-disclosure agreements with the Company or its client(s), and you agree to sign such agreements as and when required by the Company or its client(s).

During the course of your employment and after termination of the employment, you shall not make copies, either physical or electronic, of any data, papers, files, documents, processes, software, apps, or other confidential information relating to the Company or its clients.

You shall be personally liable to the Company, Company's client(s), or any other person(s) for any breach of your confidentiality obligations specified hereinabove.

7. Intellectual Property

During the course of your employment, you are likely to get involved in work which may potentially result in development or enhancement of intellectual property of any type. You agree and acknowledge that any and all rights in any intellectual property developed as a result of your work solely belong to the Company by virtue of your employment with the Company.

You shall have no right in any intellectual property so developed. You also acknowledge that the Company or its client(s) may use such intellectual property without acknowledging each individual, including you, who may have contributed to the development or enhancement of such intellectual property.

8. Non Solicitation

During the course of your employment with the Company, you may have contact with employees and client(s) of the Company. Upon termination of your employment under any circumstances, you agree that you shall not solicit or entice away any such employees or client(s) for any matter or reason whatsoever, for a period of at least 24 (twenty-four) months from the date of termination of your employment with the Company, unless the same is expressly approved by the Company in writing.

9. Proper use of Company's Assets

You shall be personally liable for the proper use of the Company's physical assets, either owned or leased, including, but not limited to office premise, laptops, desktops, mobile phones, furniture and fixtures, motor vehicles, or other assets. You shall reimburse the Company for any loss or damage caused to such assets arising out of your negligence, including, but not limited to, loss of data and loss of work.

You shall also be responsible for carefully using any and all data, papers, files, documents, processes, software, apps, or other confidential information relating to the Company or its clients, either physical or electronic, and in no case should you use these for your own benefit to the determent of the Company, while employed with the Company. During your employment or subsequent to your employment, you agree to abstain from data theft of any kind whatsoever. Towards this end, you shall not make copies, either physical or electronic, of any and all data, papers, files, documents, processes, software, apps, or other confidential information relating to the Company or its clients, unless required to do so as a part of your employment with the Company.

10. Objectionable Content

During the course of your employment with the Company, you shall not store, share, upload, download, modify, transmit, display or host, in any manner, within or through the IT infrastructure or facilities of the Company or otherwise, any objectionable content. Objectionable content includes, but is not limited to:

- Any content which contains viruses, or other undesirable computer programs or bugs which can potentially interfere in the functioning of the IT infrastructure, including computer systems of the Company or other person(s).
- Any content which is illegal as per the laws of India, or promotes illegal actions under any laws for the time being enforceable in India, or any other location where you are working from.
- Any content which infringes intellectual property rights of any other person.
- Any content which is obscene or pornographic or encourages pornography.

- Any content which promotes violence, hatred or inequality based on caste, creed, region, gender, language, religion or culture.
- Any content which is defamatory in nature, or which misrepresents facts relating to any person(s) dead or alive.
- Any content which is objectionable as per the discretion of the Company.

11. Notice Period for Termination

You shall be entitled to express your intention to be relieved of the duties under this employment, in writing, either via email or via a letter physically signed by you. In such a case, the Company may relieve you of our duties after requiring you to complete unfinished parts of the project or task you may have been involved in, or otherwise as considered appropriate by the Company in its sole discretion. Similarly, through a written communication, the Company may express its intention to relieve you of your duties under this employment without the compulsion to provide any reasons whatsoever for such intention.

The notice period applicable in your case is 2 (two) months from the date of written communication as aforesaid, in both scenarios. In case you request for an earlier release, the Company may agree for such early release depending on the quantum and nature of unfinished work, and subject to recovery of the part of the compensation equivalent to the unserved notice period. During the probation period, the notice period applicable in your case is 15 (fifteen) days.

12. Immediate Termination

The Company reserves the right to terminate your employment without the aforementioned notice period, in cases involving disciplinary matters of any kind. The Company's right to terminate employment in this situation is without prejudice to the Company's right to initiate action under any civil or criminal proceedings as appropriate.

The Company also reserves the right to terminate your employment, or substantially alter the terms of your employment, including days, timing and place of work, salary, leave or other entitlements, or other terms of this Employment Letter, without the aforementioned notice period, in cases involving abnormal circumstances such as epidemic, pandemic, riots, political, geographical or economic instability, or other situations involving any types of *Force Majeure*.

13. Returning Physical Assets and Intangible Property

Upon termination of your employment with the Company, you shall immediately return all physical assets such as laptops, computers, mobiles etc., which may have been in your possession during the course of your employment with the Company.

Similarly, upon termination of your employment with the Company, you shall return all documents, files, papers etc., whether in physical form or electronic form, as may have come in your possession during the course of your employment. You shall not make copies or take extracts of such documents, files, papers etc., in any manner whatsoever.

The Company reserves the right to get relevant declarations from you in relation to returning of all physical assets, as well as data, documents, files etc., which may have been in your possession during the course of your employment with the Company.

14. Making Content Available to Public

You are an ambassador of the Company even outside of your regular workplace and outside of working hours. Accordingly, you agree to not make any material available to members of the public within or outside the Company, via any physical or electronic modes, including but not limited to, telephone, email, social media, television, radio, internet, or any other modes of communication, which can potentially be perceived to be the view of, or have an approval from, the Company, or any member of the Company. This includes, but is not limited to, the following:

- Any and all types of content listed in Paragraph 10 hereinabove.
- Any information, views, or opinions, which may potentially malign the image of the Company, its client(s), vendors or members, or family members of any of these.
- Any comment whatsoever, on the action or omission of action on the part of any member of any executive, administration, and judiciary body(ies) of the Central or State Government, Local bodies or any other Government officials.
- Any recommendation whatsoever as regards the roles and responsibilities of any member of any executive, administration, and judiciary body(ies) of the Central or State Government, Local bodies or any other Government officials.
- Any unverified news or information, which can potentially create panic in the members of the public, or which can potentially cause risk to life or property of any person whatsoever.
- Any other content not supported by the Company, and for which you have not taken a prior written approval from the Company.

In case you make any of the above content available to any members of the public, you shall be solely responsible for all costs and consequences of such actions, without recourse to the

Company or any of its Members. This is without prejudice to the Company's right to initiate action under any civil or criminal proceedings as appropriate.

15. Full and Final Settlement

Upon termination of your employment with the Company, the Company shall settle your dues in full, after appropriately adjusting for any amounts owed by you to the Company. In case you owe any amounts to the Company, you shall settle the same immediately.

16. Appropriate Use of Employee Data

By accepting the terms of this employment, you specifically give your consent to the Company to save, store, process, or use any data or information, including personal information relating to you, for management of the affairs of the Company, for legitimately carrying out the business of the Company in the best interest of the Company and / or its client(s), and for the Company's compliance with any or all of the applicable laws, rules and procedures of India, and / or any other country of your location, as the case may be, either by itself, or through any external person(s) appointed by the Company in this regard.

I Accept



Himaank Goyal